

Sirsapalli Srinivas vs Sirsapalli Leelavathi on 11 March, 2020

Author: C.Praveen Kumar

Bench: C.Praveen Kumar, Battu Devanand

HON'BLE SRI JUSTICE C.PRAVEEN KUMAR
AND
HON'BLE SRI JUSTICE BATTU DEVANAND

Civil Revision Petition No.3555 of 2019

ORDER :

(per the Hon'ble Sri Justice C.Praveen Kumar)

1. Heard both sides and perused the record.
2. The present Civil Revision Petition is filed against the order passed in I.A. No.1339 of 2018 in O.P.No.687 of 2016 on the file of the Judge, Additional Family Court, Visakhapatnam, wherein the application filed under Section 12 of Guardians and Ward Act for interim custody/visitation rights came to be rejected.
3. The facts in issue are as under :

The petitioner herein is the legally wedded husband of the respondent. Their marriage took place on 27.8.2010 at Annavaram Temple and out of wedlock, a female child was born to them, who is now in the custody of mother. It is said that the respondent - wife used to behave very rudely with the child from the beginning. He being the father of the minor and as he is a natural guardian will be the best person to take care of the child. It is said that efforts made by him to see the child at least once in a week proved futile.

4. Counter came to be filed denying the allegations made except to the extent of relationship. It is said that the husband necked out the respondent from the matrimonial society, which lead to filing of a case under Section 494 I.P.C. and also a case under Section 498-A I.P.C. The averments in the counter also show filing of applications under Sections 18 and 20 of Hindu Adoptions and Maintenance Act and also under Section 27 of Hindu Marriage Act for return of dowry and other articles which are pending adjudication. Having regard to the averments in the counter, the trial court felt that it is not a fit case for grant of interim custody of the child, pending O.P. filed for appointment of the petitioner as a guardian of the minor under Section 7 read with Section 10 of Guardian and Wards Act.

5. Sri Srinivas Bodduluri, learned counsel appearing for the petitioner, would contend that the petitioner, being the natural guardian of his daughter should be given visitation. It is urged that the respondent is living separately after the disputes arose with the petitioner, due to her illicit relationship with another person and as such, it is not desirable to allow the child to continue with the mother.

6. The same is opposed by Sri N.H.Akbar, learned counsel for the respondent, stating that on 17.4.2015 the petitioner dropped the respondent at her parental house at Visakhapatnam, only with an intention to get rid of her. The averments in the counter speaks about the amounts due by the petitioner towards maintenance to her and her daughter in D.V.C. No.36 of 2015; the applications made by her for issuance of Non-Bailable Warrants against the petitioner herein for recovery of the maintenance etc., It is further pleaded that though the O.P. was filed in the month of July, 2016, two years later, the present I.A. came to be filed for interim custody of the child. It is further pleaded that disputes between them started in the year 2015 and so far, without showing any interest towards the daughter, he is now seeking interim custody of the child, which cannot be accepted. The averments in the counter speaks about the property which the petitioner is having and in spite of the same, no effort is made by him to pay any amount for the welfare of the wife and child. Having regard to all the circumstances, pleads for dismissal of the petition.

7. Now, the short point that arises for consideration is, whether it is a fit case for granting interim custody or at least visitation rights to the petitioner pending disposal of O.P.?

8. It is no doubt true that the O.P. was filed in the year 2016 and nearly 2 ½ years later, the present claim came to be filed seeking interim custody of the child. The fact that the petitioner is father of the child is not in dispute. The documents filed along with the counter shows initiation of number of cases by the wife against the husband, not only criminal cases, but also cases for payment of maintenance. The averments in the counter indicate steps being taken by the wife for issuance of Non-Bailable Warrants due to failure on the part of the husband to pay the maintenance awarded by the trial court towards wife and child. Keeping these things in the background, it is to be seen whether visitation rights can be ordered?

9. In Gaurav Nagpal v. Sumedha Nagpal¹ the Apex Court held as under :

"40. Section 6 enacts as to who can be said to be a natural guardian. It reads thus;

"6. Natural guardians of a Hindu Minor.--The natural guardians of a Hindu minor, in respect of the minor's person as well as in respect of the minor's property (excluding his or her undivided interest in joint family property), are--

(a) in the case of a boy or an unmarried girl--the father, and after him, the mother; provided that the custody of a minor who has not completed the age of five years shall ordinarily be with the mother;

(b) in the case of an illegitimate boy or an illegitimate unmarried girl--the mother, and after her, the father.

(c) in the case of a married girl--the husband:

Provided that no person shall be entitled to act as the natural guardian of a minor under the provisions of this section --

(a) if he has ceased to be a Hindu, or

(b) if he has completely and finally renounced the world becoming a hermit (vanaprastha) or an ascetic (yati or sanyasi).

Explanation.--In this section, the expressions "father" and "mother" do not include a step-father and a step- mother.

41. Section 8 enumerates powers of natural guardian. Section 13 is extremely important provision and deals with welfare of a minor. The same may be quoted in extenso;

"13. Welfare of minor to be paramount consideration.

(1) In the appointment or declaration of any person as guardian of a Hindu minor by a court, the welfare of the minor shall be the paramount consideration.

(2) No, person shall be entitled to the guardianship by virtue of the provisions of this Act or of any law relating to guardianship in marriage among Hindus, if the court is of opinion that his or her guardianship will not be for the welfare of the minor."

(emphasis supplied)

42. Section 26 of the Hindu Marriage Act, 1955 provides for custody of children and declares that in any proceeding under the said Act, the Court could make, from time to time, such interim orders as it might deem just and proper with respect to custody, maintenance (2009) 1 SCC 42 and education of minor children, consistently with their wishes, wherever possible.

43. The principles in relation to the custody of a minor child are well settled. In determining the question as to who should be given custody of a minor child, the paramount consideration is the 'welfare of the child' and not rights of the parents under a statute for the time being in force."

10. Keeping in view the law laid down by the Apex Court we will now decide as to whether visitation rights can be given to the father.

11. As seen from the counter, an amount of Rs.1,95,000/- is said to be due as on 4.4.2019 towards wife and minor daughter in D.V.C.No.36 of 2015. The record also shows that an application under

Section 125(3) of Cr.P.C. came to be filed for recovery of the interim maintenance granted. Averments in the counter also show that initially an application under Section 12 by the wife seeking interim maintenance was dismissed on 22.9.2016 and on appeal vide Criminal Appeal No.414 of 2016, the appellate court directed the petitioner to pay a sum of Rs.3,000/- per month to the wife and Rs.2,000/- per month to the child. It is pleaded that the said order has not been complied with and as on today an amount of Rs.1,95,000/- is due. The averments in the counter further show that in F.C.O.P. No.1021 of 2015, the Court was pleased to grant interim maintenance of Rs.5,000/- to the wife and Rs.2,000/- to the minor daughter vide I.A. No.521 of 2015 on 10.4.2016. Aggrieved by the same, the petitioner herein preferred C.R.P.No.5027 of 2016, wherein the Court stayed the order subject to payment of 50% of the decretal amount. It is said that pursuant thereto, the petitioner herein has been depositing Rs.3,500/- per month in the account of the respondent herein, but that too irregularly.

12. The narration of the facts above would indicate two things. Firstly, though he filed O.P. in the year 2016, he never moved an application for the interim custody of the child till 2019. No explanation is forthcoming for the same. Be that as it may, even the orders placed on record show that the petitioner herein has not been regularly complying with the order granting maintenance by the courts below. But, fact remains that he is the natural guardian of the minor daughter.

13. Having regard to the fact that education of the child, well being and good health of the child being paramount consideration, apart from love and affection of mother as well, the petitioner herein shall deposit some money so as to show his bona fide love and affection towards the child, as he moved this application at a very belated stage. In fact, deposit of some amount would be beneficial towards education, well being and good health of the child as well.

14. Hence, the Civil Revision Petition is disposed of directing the petitioner to deposit a sum of Rs.1,00,000/- (Rupees One Lakh only) in lump sum, in the account of the minor child within four weeks from today to the account of the O.P. and on such deposit, the petitioner herein shall be permitted to visit the child, who is with the mother, after taking prior appointment. The petitioner is permitted to visit once in 15 days i.e., on a Sunday between 4.00 PM and 5.30 PM. He is permitted to interact with the child in the presence of the mother or any elder from the family of the mother. It is needless to mention that the petitioner shall not use any force, threat or coercion, while interacting with the child and he is not permitted to take out the child from the house where she is living. It is also to be noted that the minor daughter shall not be forced to interact with the father, if she is not willing.

15. Accordingly, the Civil Revision Petition is disposed of. No order as to costs.

Consequently, interlocutory applications pending, if any, shall stand closed.

----- JUSTICE C.PRAVEEN KUMAR

JUSTICE BATTU DEVANAND Date : 11.3.2020.

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